

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

3. DANNA DEPUGLIA V. BRUCE LESLIE GILBERT

26FL0466

On July 23, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support and attorney's fees. She filed her Income and Expense Declaration concurrently therewith. All required documents were served electronically on July 24th.

Respondent filed and served his Income and Expense Declaration and his Responsive Declaration to Request for Order on September 3, 2026.

Petitioner has not filed a reply declaration.

Petitioner is requesting guideline spousal support and need-based attorney's fees in the amount of \$5,000.

Respondent opposes the request for support. If the court is inclined to award spousal support, Respondent asks that he be permitted to deduct Petitioner's one-half share of the mortgage for the Ridgeway Drive property pending its sale. He also opposes the request for attorney's fees. However, if attorney's fees are granted, he asks that they be awarded from Respondent's share of the net sale proceeds of the home.

After reviewing the filings of the parties, it does appear that Petitioner has the capacity to earn more than she currently does and to eventually become self-supporting. That said, the parties just recently separated in April of this year. Given that it has been just months since the separation the court is not inclined to deny or reduce support based on the fact that Petitioner is not yet self-supporting. As such, the request for spousal support is granted. Utilizing the figures as outlined in the attached Xspouse report, the court finds that spousal support per the Alameda formula is \$702 per month. See attached Xspouse report. The court adopts the attached Xspouse report and orders Respondent to pay Petitioner \$702 per month as and for temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. This order is effective as of August 1, 2026.

The court finds the above order results in arrears in the amount of \$1,404 through and including September 1, 2026. The court orders Respondent pay Petitioner \$117 on the 15th of each month commencing on October 15, 2026 and continuing until paid in full (approximately 12 months). If any payment is missed or late, the entire amount shall become immediately due and payable with legal interest.

The court further finds Respondent routinely earns overtime pay and therefore has included an overtime table with the Xspouse. Respondent is to pay Petitioner a true up of

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any overtime earned no later than fourteen days from the date the overtime payment is received.

The court reserves jurisdiction over the issue of credits for payment of mortgage on the home.

Turning to the issue of attorney's fees, in the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032. "In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party's case adequately." *Id.* at (b).

Here, given that Respondent's monthly income is close to double that of Petitioner's the court does find there to be a disparity in income and therefore a disparity in each party's access to legal representation. That said, the court does note that Respondent has little in the way of liquid assets therefore an award of attorney's fees to be paid for from the proceeds of the home seems to be the most equitable option. As such, Petitioner is awarded \$5,000 as and for attorney's fees and costs. This amount is to be paid directly to Petitioner's attorney and to be paid out of Respondent's portion of proceeds from the sale of the Ridgeway Drive property.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE REQUEST FOR SPOUSAL SUPPORT IS GRANTED. UTILIZING THE FIGURES AS OUTLINED IN THE ATTACHED XSPOUSE REPORT, THE COURT FINDS THAT SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$702 PER MONTH. SEE ATTACHED XSPOUSE REPORT. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS RESPONDENT TO PAY PETITIONER \$702 PER MONTH AS AND FOR TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF AUGUST 1, 2026.

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THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$1,404 THROUGH AND INCLUDING SEPTEMBER 1, 2026. THE COURT ORDERS RESPONDENT PAY PETITIONER \$117 ON THE 15TH OF EACH MONTH COMMENCING ON OCTOBER 15, 2026 AND CONTINUING UNTIL PAID IN FULL (APPROXIMATELY 12 MONTHS). IF ANY PAYMENT IS MISSED OR LATE, THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE WITH LEGAL INTEREST.

THE COURT FURTHER FINDS RESPONDENT ROUTINELY EARNS OVERTIME PAY AND THEREFORE HAS INCLUDED AN OVERTIME TABLE WITH THE XSPOUSE. RESPONDENT IS TO PAY PETITIONER A TRUE UP OF ANY OVERTIME EARNED NO LATER THAN FOURTEEN DAYS FROM THE DATE THE OVERTIME PAYMENT IS RECEIVED.

THE COURT RESERVES JURISDICTION OVER THE ISSUE OF CREDITS FOR PAYMENT OF MORTGAGE ON THE HOME.

RESPONDENT IS TO PAY PETITIONER'S ATTORNEY \$5,000 AS AND FOR ATTORNEY'S FEES AND COSTS. THIS AMOUNT IS TO BE PAID DIRECTLY TO PETITIONER'S ATTORNEY AND TO BE PAID OUT OF RESPONDENT'S PORTION OF PROCEEDS FROM THE SALE OF THE RIDGEWAY DRIVE PROPERTY.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	1	2026			
% time with NCP	20.00 %	0.00 %				
Filing status	SINGLE	HH/MLA	GUIDELINE	Comb. net spendable	13333	13333
# exemptions	1 *	2 *	Nets(adjusted)	Percent change	0%	0%
Wages+salary	9662	6488	Father	Father		
Self-employed income	0	0	Mother	Payment cost/benefit	-702	-603
Other taxable income	0	0	Total	Net spendable income	7665	7764
TANF+CS received	0	0	Support	Change from guideline	0	99
Other nontaxable income	1513	0	Addons	% of combined spendable	57%	58%
New spouse income	0	0	Guideln CS	% of saving over guideline	0%	0%
401(k) employee contrib	0	0	Alameda SS	Total taxes	2788	2564
Adjustments to income	0	0	Total	Dep. exemption value	0	0
SS paid prev marriage	0	0	-	# withholding allowances	0	0
CS paid prev marriage	0	0	Settings changed	Net wage paycheck	6632	6632
Health insurance	0	134		Mother		
Other medical expense	0	0		Payment cost/benefit	702	603
Property tax expense	0	0		Net spendable income	5668	5569
Ded interest expense	0	0	Proposed	Change from guideline	0	-99
Charitable contributions	0	0	Tactic 9	% of combined spendable	43%	42%
Misc tax deductions	0	0	CS	% of saving over guideline	0%	0%
Qual bus income ded	0	0	SS	Total taxes	869	1093
Required union dues	20	0	Total	Dep. exemption value	0	0
Mandatory retirement	0	519		# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving	Net wage paycheck	5187	5187
Other GDL deductions	0	0	Releases			
Child care expenses	0	0	Released to Father			

Father pays Guideline SS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	20 - 80	0	0	0	Father	0	Father	0	Father
	20 - 80	0	0	0	Father	0	Father	0	Father

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father						Total CS	Total SS (adjusted)
Child Support			Spousal Support				
Father's Bonus	% of bonus	\$	% of bonus	\$			
0	0.00	0	0.00	0	0	0	0
100	0.00	0	16.16	16	0	0	8,438
200	0.00	0	16.16	32	0	0	8,454
300	0.00	0	16.16	48	0	0	8,470
400	0.00	0	16.16	65	0	0	8,486
500	0.00	0	16.16	81	0	0	8,502
600	0.00	0	16.16	97	0	0	8,519
700	0.00	0	16.16	113	0	0	8,535
800	0.00	0	16.16	129	0	0	8,551
900	0.00	0	16.16	145	0	0	8,567
1,000	0.00	0	16.16	162	0	0	8,583
1,100	0.00	0	16.16	178	0	0	8,599
1,200	0.00	0	16.16	194	0	0	8,616
1,300	0.00	0	16.16	210	0	0	8,632
1,400	0.00	0	16.16	226	0	0	8,648
1,500	0.00	0	16.16	242	0	0	8,664
1,600	0.00	0	16.17	259	0	0	8,680
1,700	0.00	0	16.17	275	0	0	8,697
1,800	0.00	0	16.17	291	0	0	8,713
1,900	0.00	0	16.17	307	0	0	8,729
2,000	0.00	0	16.17	323	0	0	8,745
2,100	0.00	0	16.17	340	0	0	8,761
2,200	0.00	0	16.17	356	0	0	8,777
2,300	0.00	0	16.17	372	0	0	8,794
2,400	0.00	0	16.17	388	0	0	8,810
2,500	0.00	0	16.17	404	0	0	8,826
2,600	0.00	0	16.17	421	0	0	8,842
2,700	0.00	0	16.17	437	0	0	8,858
2,800	0.00	0	16.17	453	0	0	8,875
2,900	0.00	0	16.18	469	0	0	8,891
3,000	0.00	0	16.18	485	0	0	8,907
3,100	0.00	0	16.18	501	0	0	8,923
3,200	0.00	0	16.18	518	0	0	8,939
3,300	0.00	0	16.18	534	0	0	8,956
3,400	0.00	0	16.18	550	0	0	8,972
3,500	0.00	0	16.18	566	0	0	8,988
3,600	0.00	0	16.18	583	0	0	9,004
3,700	0.00	0	16.18	599	0	0	9,020
3,800	0.00	0	16.18	615	0	0	9,037
3,900	0.00	0	16.18	631	0	0	9,053
4,000	0.00	0	16.18	647	0	0	9,069
4,100	0.00	0	16.19	664	0	0	9,085
4,200	0.00	0	16.19	680	0	0	9,102
4,300	0.00	0	16.19	696	0	0	9,118
4,400	0.00	0	16.19	712	0	0	9,134

Annual Bonus Income

Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother:0

Prior relationship(s):OFF

Additional Cost to Father						Total CS	Total SS (adjusted)
Father's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$			
4,500	0.00	0	16.19	728		0	9,150
4,600	0.00	0	16.19	745		0	9,166
4,700	0.00	0	16.19	761		0	9,183
4,800	0.00	0	16.19	777		0	9,199
4,900	0.00	0	16.19	793		0	9,215
5,000	0.00	0	16.19	810		0	9,231

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4. JUSTIN HALLOCK V. DEBRA HALLOCK

PFL20200781

Respondent filed a Request for Order (RFO) on June 29, 2026, seeking orders to enroll the minors in public school. Proof of Service shows Petitioner, Minors' Counsel, and the Department of Child Support Services were served on July 2, 2026.

Petitioner filed a Responsive Declaration on August 31, 2026. It was served on Respondent and Minors' Counsel on August 31, 2026.

Minors' Counsel filed a Responsive Declaration on August 31, 2026. It was served on Petitioner and Respondent on August 31, 2026.

Respondent filed a Supplemental Declaration on September 9, 2026, that is wholly unrelated to the request to enroll the minors in public school. Therefore, the court has not considered it in relation to the present hearing.

Respondent filed a Reply Declaration on September 15, 2026. It was served the same day.

The court has reviewed and considered the filings as outlined above. The court notes the parties are currently pending a Family Code section 3111 evaluation. This may impact the custody arrangement. As such, the court finds it to be premature to address the school choice issue. Further, the school year has commenced, and it is not an opportune time to change school. Therefore, the court finds good cause to continue this request to join with the hearing currently pending on November 19, 2026, at 8:30 AM in Department 5 for review of the Family Code section 3111 evaluation. Any supplemental declarations are to be filed and served at least 10 days prior to the hearing. Pending the review hearing all current orders remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: THE COURT FINDS GOOD CAUSE TO CONTINUE THIS REQUEST TO JOIN WITH THE HEARING CURRENTLY PENDING ON NOVEMBER 19, 2026, AT 8:30 AM IN DEPARTMENT 5 FOR REVIEW OF THE FAMILY CODE SECTION 3111 EVALUATION. ANY SUPPLEMENTAL DECLARATIONS ARE TO BE FILED AND SERVED AT LEAST 10 DAYS PRIOR TO THE HEARING. PENDING THE REVIEW HEARING ALL CURRENT ORDERS REMAIN IN FULL FORCE AND EFFECT.